

FORM 10a
Form of response (action for damages: personal injuries)
(as adjusted on 23 November 2023)

Court ref.no: GLW-SF361-23

SHERIFFDOM OF GLASGOW AND STRATHKELVIN

AT GLASGOW

in the cause

STEPHEN DICKSON, 9 Lewis Avenue, Wishaw, ML2 8XF

PURSUER

and

NATIONAL FARMERS UNION MUTUAL INSURANCE SOCIETY LIMITED, Tiddington
Road, Stratford-upon-Avon, CV37 7BJ

DEFENDER

RESPONSE TO STATEMENT OF CLAIM

Question	Response
1. Is it intended to dispute the description and designation of the pursuer? If so, why?	The designation of the Pursuer is not known and not admitted. <i>Quoad ultra denied.</i>
2. Is the description and designation of the defender disputed? If so, why?	The designation of the Defenders is admitted. Admitted the Pursuer is an entitled party for the purposes of Regulation2(1) of the European Communities (Rights Against Insurers) Regulations 2002. <i>Quoad ultra denied.</i>
3. Is there any dispute that the court has jurisdiction to hear the claim? If so, why?	Admitted that this court has jurisdiction.
4. (a) State which facts in paragraph 4 of the statement of claim are admitted.	Admitted that on or about 5 December 2022 the pursuer was driving a Mitsubishi Shogun motor vehicle registration L261 DNX on the M8 motorway at junction 23 in Glasgow. Admitted the defenders' insured vehicle, a Volkswagen Passat motor vehicle registration KP60 CCA was travelling behind the pursuer. Not known and not admitted why the pursuer braked. <i>Quoad ultra denied.</i>
(b) State any facts regarding the circumstances of the claim upon which the defender intends to rely.	Explained and averred that the vehicles had been in a queue of slow moving traffic, travelling at around 15 – 20 mph. The traffic in front of the pursuer's vehicle was moving. Suddenly and without warning the pursuer's vehicle executed an emergency stop. <u>There was no traffic or other reason for the pursuer's vehicle to brake. Traffic ahead was moving slowly but smoothly. No</u>

Question	Response
	<u>pedestrians were around. Road conditions were dry and visibility good.</u> The defender's insured did not have time to swerve. He braked heavily but was unable to avoid a collision.
5. (a) State whether the nature and extent of the pursuer's injuries is disputed and whether medical reports can be agreed.	The cause, nature and extent of any loss, injury or damage sustained by the pursuer as a result of the accident is not known and not admitted. <i>Quoad ultra</i> denied. Explained and averred that the sum sued for is excessive. <u>The contact between the vehicles did not result in structural engagement between the vehicles. The damage to the Volkswagen was light and non-structural as was the damage to the Mitsubishi. There was therefore no transfer of force into the Mitsubishi such that any of the occupants were moved to their injury.</u>
(b) If the defender has a medical report upon which he or she intends to rely to contradict the pursuer's report in any way, state the details.	The defender has not instructed a medical report but reserves the right to do so.
(c) State whether the claims for other losses are disputed in whole or in part.	The cause, nature and extent of any loss, injury or damage sustained by the pursuer as a result of the accident is not known and not admitted. <i>Quoad ultra</i> denied.
6. (a) Does the defender accept that <u>the common law duty or duties</u> in the statement of claim were incumbent upon them in the circumstances? If not, state why.	The Defender admits that there were certain duties incumbent upon their insured under explanation that he duly fulfilled all such duties. <i>Quoad ultra</i> denied.
(b) Does the defender accept that the <u>statutory duty or duties alleged</u> in the statement of claim were incumbent upon them in the circumstances? If not, state why.	N/A
(c) State any other provisions or propositions upon which the defender proposes to rely in relation to the question of their liability for the accident including, if appropriate, details of any allegation of contributory negligence.	The accident was caused or at least contributed to by the fault and negligence of the pursuer. He had a duty not to stop suddenly and without warning when the traffic ahead of him was moving and there was no reason to stop. <i>Esto</i> the said accident was caused to any extent by the fault of the defenders' insured, it was also caused or materially contributed to by the actions of the pursuer and any award of damages should be reduced in terms of the Law Reform (Contributory Negligence) Act 1945.

Question	Response
(d) Does the defender allege that the accident was caused by any other wrongdoer? If so, give details.	The pursuer. See answer 6(c) above
(e) Does the defender allege that they are entitled to be indemnified or relieved from any liability they might have to the pursuer? If so, give details.	No
7. Does the defender intend to pursue a counterclaim against the pursuer? If so, give details.	No

Date: 26 September 2023



DAC Beachcroft Scotland LLP
5th Floor
Sutherland House
149 St Vincent Street
Glasgow
G2 5NW
Solicitors for the Defender
File Ref: NFU017-2200003 - RRSI - Rebecca
Hewison

GLASGOW, 08 DECEMBER 2023

**I, Rebecca Hewison, hereby certify this is a
true and accurate adjusted Form 10a,
response to statement of claim.**

